

Protective and Federal Rule of Evidence 502(d) Order

United States District Court for the Eastern District of North Carolina

Rhea Calder v. Cinder Lake Health Network, Inc.

Civil Action No. SYN-EDNC-25-CV-0882

Docket Entry 14 — Filed January 9, 2026

Upon the parties' joint proposal, the Court enters this protective and Federal Rule of Evidence 502(d) order. The order governs discovery exchanged in Civil Action No. SYN-EDNC-25-CV-0882 after its entry. It facilitates production while preserving document-specific objections and public-access requirements.

Nothing in this order decides whether any communication is privileged, whether any material is work product, or whether a disclosure before January 9, 2026 caused waiver. In particular, the order does not retroactively alter the legal effect of Cinder Lake's August 21, 2025 pre-suit compliance response.

Protected Discovery Material

A producing party may designate discovery material confidential when a good-faith basis exists under the governing rules and this order. A designation controls handling during discovery but does not establish that the material is privileged, admissible, sealable, or immune from a later challenge.

Recipients may use designated material only for this action and may disclose it only to authorized litigation participants who agree to the order. Publicly available information and material independently obtained through lawful nonconfidential means do not become protected merely because another copy appears in discovery.

Rule 502(d) Nonwaiver Protection

Under Federal Rule of Evidence 502(d), disclosure connected with this federal proceeding does not waive attorney-client privilege or work-product protection in this or any other federal or state proceeding. The protection applies without requiring a producing party to prove that each disclosure was inadvertent or that particular precautions were reasonable.

This paragraph governs litigation disclosures on and after January 9, 2026. It is not a finding about the August 21 letter, which predates this action and this order. The parties may litigate that letter's actual content and legal effect on an appropriate record.

Notice, Sequestration, and Challenge

A producing party claiming that disclosed material is protected shall identify the item and basis with reasonable particularity. Upon notice, the recipient must sequester the material, stop further use or dissemination, retrieve distributed copies where practical, and either return or preserve it for a prompt judicial challenge.

Sequestration is procedural and does not decide the claim. The recipient may rely on nonprivileged metadata and an appropriately framed submission to contest protection. The Court may review a disputed item through a lawful nonpublic process when necessary.

Filing and Public Access

This discovery order does not authorize filing confidential or protected material under seal. A party seeking restricted treatment must follow the law and local procedures governing judicial records, file a public motion and notice when required, and support sealing with document-specific reasons and a narrowly tailored proposal.

A confidentiality designation alone is not enough. Public redacted counterparts or standalone surrogates should be used when they can convey the dispute safely. Nothing here represents access to a sealed item through CM/ECF or any other real court system.

Entry of Order

The Court retains authority to modify this order, resolve designation disputes, and impose appropriate remedies for misuse. At the conclusion of the action, recipients shall return or destroy protected discovery as agreed, subject to counsel's lawful archival obligations.

SO ORDERED January 9, 2026 by **Evelyn Harrow**, Fictional United States District Judge. This order is prospective only; it neither retroactively erases nor creates waiver arising from conduct before entry.